

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Bakerly, LLC

Complainant,

v.

Docket No. 22-17

Seafrigo USA, Inc.

Respondent.

**JOINT REPORT OF PARTIES AND
PROPOSED SCHEDULING AND DISCOVERY ORDER**

Pursuant to Federal Rule of Civil Procedure 26(f) and FMC Rules § 502.141(b), (h), the parties held initial meetings and exchanges on September 5, 2022, and September 7, 2022 with attorneys Carlos Rodriguez and Julia Banegas representing Bakerly, LLC and Brendan Collins representing Seafrigo USA, Inc. participating.

SCHEDULING AND DISCOVERY PLANS WERE DISCUSSED AND AGREED TO AS FOLLOWS:

1. Initial disclosures were served on Seafrigo by Bakerly by August 29, 2022, and served on Bakerly by Seafrigo by September 2, 2022.

The parties discussed that the subjects on which discovery might be needed from the Bakerly perspective: Rules Tariff and bill of lading terms and conditions; hindrances claimed by Seafrigo to the timely pick up of containers and return of empties; Seafrigo capabilities, including software, drivers, and equipment, to diligently perform pick up and return of empty containers; and Seafrigo staffing levels. From the Seafrigo perspective, it was discussed that Seafrigo required discovery as to: 1) Bakerly's ability to timely accept containers and to timely unload and allow for the return of empty containers and equipment; 2) Bakerly's warehousing system; 3) Bakerly's knowledge that Seafrigo was advancing funds on Bakerly's behalf for which Seafrigo was contractually entitled to be reimbursed; and 4) the extent to which the charges in dispute are pass throughs from vessel operating common carries (VOCCs) or marine terminal operators.

The parties agreed that Bakerly would provide detailed information to Seafrigo of any

demurrage and/or detention incurred due to admitted problems at certain Bakerly warehouse facilities at specific time periods and would remove those amounts from the claims of the proceeding. Bakerly agreed that it would not dispute Seafrigo's entitlement to be paid all claims for freight and other charges not related to demurrage and detention. Subject to such agreement, issues regarding those invoices would no longer be in dispute. The parties also agreed to review the claimed damages in Count 3 related to charges made by ocean common carriers and/or terminals which could total more than \$361,278.54 for demurrage and detention and demurrage charges caused by snowstorms, and/or port closures due to snowstorms and would consider seeking joint remedial actions from such ocean common carriers and/or terminals. Seafrigo does not agree that other pass-through charges arising from port congestion and VOCCs and terminal operators' inability to provide or accept empty containers are Seafrigo's responsibility.

2. The parties also consulted on the feasibility of seeking mediation or other alternative dispute resolution process offered by the Federal Maritime Commission as an available process for seeking resolution of the issues of this proceeding. This was left as an open viable route for part or all the fact and law issues in the proceeding.
3. Initial interrogatories, requests for production, and requests for admission, pursuant to Federal Rules of Civil Procedure 33 and 34 shall be served on opposing parties by September 26, 2022.
4. The parties **CERTIFY** that they have discussed, in particular, the proportionality of discovery, the burden and expense associated with discovery, and the discovery of electronically stored information (ESI). The parties do not anticipate a need for ESI protocol.
5. Discovery shall be completed by January 19, 2023 (no later than 150 days after the service of the respondent's answer to the complaint. FMC R. §502.141(g). Any written interrogatories or request for production served after the date of the Scheduling and Discovery Order shall be served by a date that allows the served parties the full 30 days as provided by the Federal Rules of Civil Procedure in which to answer or produce by the discovery cut-off date.
6. All dispositive motions shall be filed by March 3, 2023.
7. The parties are reminded that, prior to filing any motions concerning discovery, they must first meet and confer relating to any discovery disputes and then contact the Administrative Law Judge to arrange a telephone discovery dispute conference if they are unable to resolve their dispute(s). If the dispute cannot be resolved in the first telephonic conference, the parties agree to submit input of the parties on the discovery issues in writing for resolution by the Administrative Law Judge on an expedited basis.

DATED: September 12, 2022

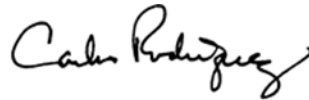
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